

TAB 3



Board of Education Report

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File #: Rep-132-22/23, Version: 1

Approval of Facilities Contracts Actions**April 18, 2023****Procurement Services Division - Facilities Contracts****Action Proposed:**

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment "A" including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; assignment and assumption of rights and delegation of duties - professional services agreement; extra services / amendments for architectural and engineering contracts and approve the proposed contracts listed in Attachment B including approval of technical services task order contracts capacity increase amendment; approval of architectural and engineering contract capacity increase amendment; and approval of installation of electric bus charging stations contract.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013 Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment "A" will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

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Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up-to-date facilities that promote learning

Equity Impact:

Not applicable

Issues and Analysis:

There are no policy implications on these agreements

Attachments:

Attachment "A" - Ratification of Facilities Contract Actions Awarded Under Delegated Authority

Attachment "B" - Approval of Facilities Contract Actions Not Under Delegated Authority

Informatives:

None

Submitted:

03/22/23

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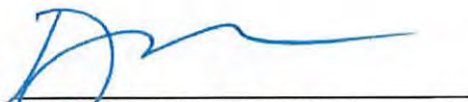
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:

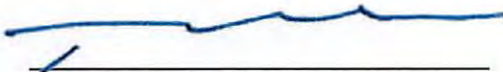

DEVORA NAVERA REED
General Counsel

APPROVED BY:


SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

☒ Approved as to form.

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning

APPROVED & PRESENTED BY:


JUDITH REECE
Chief Procurement Officer
Procurement Services Division

☒ Approved as to budget impact statement

REVIEWED BY:


MARK HOVATTER
Chief Facilities Executive

☐ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Best Contracting Services, Inc.	2310006 / 4400011223	<u>Los Angeles Center for Enriched Studies</u> Roofing (PSA) Board Member: <u>Dr. George J. McKenna III</u>	<i>Bond Funds</i> (100%)	\$999,145

Ratification of formally competed contract to remove and replace deteriorated roofing and lunch shelter critical repair.

Provides approximately 20,000 square feet of new roofing at eight (8) buildings including the installation of new gutters and downspouts and painting of affected areas. Also includes addressing water damage at lunch shelter by replacing deteriorated wood beams, attic vents and providing new acoustic ceiling material. ([REP #060-19/20](#) October 1, 2019 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve two projects that address critical school repair needs) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 03/07/23 through completion

Contract Value: \$999,145

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2310009 / 4400011328	<u>Lowman Special Education & Career Transition Center</u> ADA Barrier Removal Board Member: <u>Kelly Gonez</u>	<i>Bond Funds (100%)</i>	\$1,554,352

Ratification of formally competed best value contract from four (4) bids received to provide Americans with Disabilities Act (ADA) Barrier Removal upgrades.

Upgrades the following facilities to comply with the Americans with Disabilities Act and improve program accessibility: doors/hardware, accessible paths of travel, signs, drinking fountains, sinks/sink cabinets, phone, concrete ramps, accessible furniture, railings, casework/counters, door modifications/auto opener and playground matting/equipment. ([REP #137-18/19](#) November 13, 2018 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve eight accessibility enhancement projects) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 03/07/23 through completion

Contract Value: \$1,554,352

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
ISR Painting & Wall Covering (SBE)	2310011 / 4400011195	<u>Franklin HS</u> Exterior Painting Board Member: <u>Dr. Rocío Rivas</u>	<i>Restricted Maintenance Funds (100%)</i>	\$1,495,000

Ratification of formally competed contract from six (6) bids received to provide exterior painting.

Prepare, paint, and refinish the exterior of all buildings and all appurtenances including but not limited to, all walls, retaining walls, block walls, enclosures, storage containers and all previously painted surfaces on the exterior of the site. Pillar 4 is supported by this action.

Contract Term: 03/06/23 through completion

Contract Value: \$1,495,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2310012 / 4400011154	<u>State Street ES</u> ADA Barrier Removal Board Member: <u>Jackie Goldberg</u>	<i>Bond Funds</i> (100%)	\$2,409,094

Ratification of formally competed best value contract from six (6) bids received to provide Americans with Disabilities Act (ADA) Barrier Removal upgrades.

Upgrades the following facilities to comply with the Americans with Disabilities Act and improve program accessibility: doors/jambs, door hardware, thresholds, accessible paths of travel, signs, restrooms, drinking fountains, sinks/sink cabinets, assistive listening device/intercom/phone, concrete ramps, one metal ramp, accessible furniture, assembly seat, railings, existing elevator modifications, parking area, casework, counters, door modifications/auto openers and stage lift. ([REP #015-19/20](#) September 3, 2019 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve four accessibility enhancement projects) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 02/22/23 through completion

Contract Value: \$2,409,094

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Ohno Construction Company, Inc. (SBE)	2310013 / 4400011163	<u>Carson HS</u> Synthetic Turf Replacement Board Member: <u>Tanya Ortiz Franklin</u>	<i>Bond Funds (100%)</i>	\$1,965,000

Ratification of formally competed best value contract from three (3) bids received to provide synthetic turf replacement.

Removes and replaces approximately 80,000 square feet of synthetic turf on the football field. Removes existing synthetic turf, reuse existing drainage pad and aggregate base, fine grade base and install new geo-fabric on top base. Replace sprinkler heads, provide new aggregate in existing drainage, new booster pump for irrigation. ([REP #082-21/22](#) October 12, 2021 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve seven projects to provide critical replacements and upgrades of school building/site systems and components) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 02/27/23 through completion

Contract Value: \$1,965,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
L.A. Electricom, Inc. (SBE)	2310016 / 4400011261	<u>Sun Valley HS (Valley Oaks CES)</u> Transformer Installation Board Member: <u>Kelly Gonez</u>	<i>State Career Tech Education Funds (100%)</i>	\$166,700

Ratification of formally competed contract from two (2) bids received to provide transformer installation.

Provide new transformer to supply needed power for the Clear Vision Studio Audio/Visual project at Valley Oaks Center for Enriched Studies. Includes upgrading three existing classrooms into a recording studio, projection room and media classroom. Also includes ADA accessibility upgrades as necessary, specialized technology, equipment, and furnishings in support of the arts, media, and entertainment instructional programs. ([REP #074-20/21](#) November 10, 2020 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve the career technical education clear vision studio project at Valley Oaks Center for Enriched Studies Magnet) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 04/14/23 through completion

Contract Value: \$166,700

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item G

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Alternate Power & Construction, Inc., dba Danial's Electric (SBE)	2030012 / 4400008454 (2030012.09)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 05/22/20 through 05/21/23
Zero (0) option years (OY) remaining

Initial Contract Value:	\$500,000
Amendment No. 1	\$0
	Terms Revised
Amendment No. 2	\$1,000,000
Amendment No. 3	\$0
	Terms Revised
Amendment No. 4	\$0
	Terms Revised
	OY1
Amendment No. 5	\$1,000,000
Amendment No. 6	\$1,000,000
Amendment No. 7	\$1,000,000
	Terms Revised
	OY2
Amendment No. 8	\$500,000
*Amendment No. 9	\$500,000
<i>(Executed Date: 01/26/23)</i>	

Aggregate Contract Value: \$5,500,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
T&M Painting & Construction, Inc. (SBE)	2130004 / 4400008563 (2130004.05)	Districtwide Job Order Contract Amendment	<i>Restricted Maintenance Funds (100%)</i>	\$2,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide painting contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 07/24/20 through 07/23/23
Zero (0) option years (OY) remaining

Initial Contract Value:	\$1,000,000
Amendment No. 1	\$1,500,000
Amendment No. 2	\$0
	Terms Revised
	OY1
Amendment No. 3	\$1,500,000
Amendment No. 4	\$0
	Terms Revised
	OY2
*Amendment No. 5	\$2,000,000
<i>(Executed Date: 02/06/23)</i>	

Aggregate Contract Value: \$6,000,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item I

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
C&P Construction Development, Inc. (SBE)	2230007 / 4400010337 (2230007.02)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 03/08/22 through 03/06/24
One (1) option year (OY) remaining

Initial Contract Value:	\$500,000
Amendment No. 1	\$1,000,000
*Amendment No. 2	\$500,000
(Executed Date: 01/20/23)	Terms Revised OY1

Aggregate Contract Value: \$2,000,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Asbestos Instant Response, Inc., dba AIR Demolition and Environmental Solutions (SBE)	2230025 / 4400010616 (2230025.01)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide abatement and demolition contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/30/22 through 06/29/23
Two (2) option years (OY) remaining

Initial Contract Value: \$350,000
*Amendment No. 1 \$500,000
(Executed Date: 02/01/23)

Aggregate Contract Value: \$850,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item K

B. APPROVAL OF CHANGE ORDERS

February 2023 = \$3,648,033

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for February 2023 (Average Transaction: \$40,623; Median Transaction: \$16,020)	32	\$1,299,939
	ii. New Construction contract credit change orders for February 2023:	2	<\$15,893>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for February 2023 (Average Transaction: \$15,424; Median Transaction: \$6,291):	192	\$2,961,313
	iv. Existing Facilities contract credit change orders for February 2023:	15	<\$597,326>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for February 2023, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – February 2023	18	\$11,155,367
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$109,300)		
	A & B Letters for February 2023 (Average Transaction: \$44,635; Median Transaction: \$34,728)	20	\$892,691

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

G. ASSIGNMENT AND ASSUMPTION OF RIGHTS AND DELEGATION OF DUTIES – PROFESSIONAL SERVICES AGREEMENT

Item L

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>AMOUNT</u>
VPA LA Inland Empire, Inc. dba Valbridge Property Advisors	2190021 / 4400008792	\$0
	2190037 / 4400009155	

Ratification of Assignment and Assumption of Agreement from Cummings Appraisal Group, Inc. dba Valbridge Property Advisors, to provide real estate appraisal and real estate appraisal review services for the District's Facilities Planning & Development group. Currently there is no work remaining in the scope of services.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

- O. **EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND ENGINEERING CONTRACTS** **\$2,187,379**

Item M

CONTRACT NOS.	1420029/4400002653; 1620142/4400004780; 1620147/4400004891; 1620147/4400004891; 1720042/4400005892; 1720042/4400005892; 1820010/4400006102; 1820025/4400006191; 1820026/4400006211; 1820028/4400006234; 1820031/4400006280; 1920009/4400007241; 1920019/4400007462; 1920023/4400007774; 2020004/4400007918; 2120140/4400009425; 2220026/4400010182
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Extra services are for design work that is not covered under the original Agreement. January Extra Services are listed at the link provided.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

[BOE 132 Extra Services](#)

**ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY**

**A. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS \$6,000,000
CAPACITY INCREASE AMENDMENT (PCC 20118.5-.9)**

Item N

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Jack Cardani Construction, Inc. (SBE)	2080012/4400008133
Martinez Landscape Co., Inc. (SBE)	2080013/4400008134
R Brothers, Inc. (SBE)	2080014/4400008135

Authorization to increase capacity for three (3) formally competed task order contracts for concrete repair services District-wide procured via IFB R-19045. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each.

([BOE#249-19/20](#) March 10, 2020 Attachment B, Approval of Contracts Not Under Delegated Authority)

Contract Term: 04/01/20 through 12/31/23, includes two (2) one-year renewal options

Original Value: \$3,000,000

*Additional Requested Value: \$6,000,000

NOT-TO-EXCEED AGGREGATE AMOUNT
\$9,000,000* (100% Restricted Maintenance Funds)

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

B. APPROVAL OF ARCHITECTURAL AND ENGINEERING CONTRACT \$15,000,000
CAPACITY INCREASE AMENDMENT

Item O

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
CASC Engineering and Consulting, Inc.	2120004/4400008743	P.A. Arca Engineering, Inc.	2120013/4400008752
David Evans and Associates, Inc.	2120005/4400008744	Psomas	2120014/4400008753
J.O. Nelson Consulting Land Surveyors, Inc.	2120008/4400008747	Soloff Surveying & Consulting	2120015/4400008754
JT Engineering	2120009/4400008748	Stantec Consulting Services Inc.	2120016/4400008755
Land Design Consultants, Inc.	2120010/4400008749	The Culver Group	2120017/4400008756
Michael Baker International, Inc., a Pennsylvania Corporation	2120011/4400008750	Uniplan Engineering, Inc.	2120018/4400008757
Mollenhauer Group Civil, Inc.	2120012/4400008751	VCA Engineers, Inc.	2120019/4400008758
		Wagner Engineering & Survey, Inc.	2120020/4400008759

Authorization to increase capacity for fifteen (15) formally competed professional services contracts for land surveying services District-wide procured via RFQ R-20023. The amount awarded per firm will be based upon the needs of the Bond Program. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate amount of \$25,000,000.

([BOE#056-20/21](#) November 10, 2020, Approval of Architectural and Engineering Contracts)

Contract Term: 11/01/20 through 10/31/23, plus two (2) one-year renewal options

Original Value: \$10,000,000
 *Additional Requested Value: \$15,000,000

NOT-TO-EXCEED AGGREGATE AMOUNT
 \$25,000,000* (100% Bond Funds)

Requester:
 India Griffin, Director
 Maintenance & Operations
 Facilities Services Division

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

C. APPROVAL OF INSTALLATION OF ELECTRIC BUS CHARGING STATIONS

\$2,050,000

Item P

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Ian Thomas Group (SBE)	2310015	<u>San Julian Bus Garage</u> New Parking Area Electric Bus Charge Stations Board Member: <u>Dr. Rocío Rivas</u>	<i>California Energy Commission Grant (100%)</i>	\$2,050,000

Approval of formally competed contract from three (3) bids received to provide electrical charging stations and new asphalt at the parking lot.

Installation of nine (9) electric bus charging stations to service electric buses. Provide approximately 29,000 square feet of asphalt throughout the parking lot and parking striping. Electrical plans to install new parking light posts, lights on existing fleet garage and related electrical components. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 04/19/23 through completion

Contract Value: \$2,050,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division